

Court No. - 29

Case :- WRIT - C No. - 11494 of 2019

Petitioner :- Azijurrahman

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Balram Jee Verma

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel appearing for the respondent nos.3 and 4.

The petitioner is aggrieved by the demand of Rs.3,60,000/- as arrears of electricity dues.

The contention of petitioner is that his electricity was permanently disconnected on 21.11.2017 but even then the above demand has been raised.

Sri Mahboob Ahmad, learned counsel appearing for the respondent nos.3 and 4 submits that though there is a report of permanent disconnection but no certificate in that regard has been issued and as such connection remains in existence. Moreover, there is dispute with regard to several bills of electricity and the matter can be resolved by the Executive Engineer.

Clause 6.5. of the U.P. Electricity Supply Code, 2005 provides for the settlement of disputes regarding bills and arrears of electricity dues.

In view of the aforesaid clause, we dispose of the writ petition with liberty to the petitioner to make a comprehensive representation regarding his grievance

relating to the demand of electricity dues from him before the Executive Engineer, concerned, within a period of two weeks from today and in case any such representation is made, the Executive Engineer shall consider it and decide it, in accordance with law, by a speaking order as expeditiously as possible preferably within a period of six weeks, thereafter.

In the meantime, no coercive steps shall be taken by the respondents so as to realise the disputed amount till the decision of the representation.

It is made clear that in the event no representation is filed within the aforesaid period, the recovery will proceed.

The writ petition is disposed of, accordingly.

Order Date :- 8.4.2019

Pramod Tripathi